

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S NOTICE TO THE COURT AND
CLERK OF MAY 7, 2026 CURE FILINGS,
ITEMIZED CROSS-REFERENCE, AND
STATEMENT OF RULE-BY-RULE

AUTHORITY FOR EACH CURE DOCUMENT

(Cal. Rules of Court, rules 3.1112(b), 3.1113(j), 3.1300(d);
Code Civ. Proc., §1005(b))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 Authority for the Vehicle

2 This Notice is filed under Cal. Rules of Court, rule 3.1112(b) (other papers in support); rule
3 3.1113(j) (incorporation by reference); rule 3.1300(d) (no paper rejected for untimeliness);
4 and the inherent authority of a party. As a “non-memorandum other paper” under CRC
5 3.1112(b), this Notice is not subject to the 15-page memorandum cap of CRC 3.1113(d).
6 Suggested length: five to seven pages.

7
8 Section 1 - Hearing Identification

9 Plaintiff respectfully addresses this Notice to the Court and the Clerk of the San Francisco
10 Superior Court, Department 301. The hearing under consideration is on Defendants’ Special
11 Motion to Strike Pursuant to C.C.P. §425.16, filed April 9, 2026 (Doc. Nos. 017 to 020),
12 set for May 12, 2026 at 9:30 a.m. in Dept. 301. The instant Notice and the cure filings
13 identified in Section 4 below are filed contemporaneously on May 7, 2026, three court days
14 before the May 12, 2026 hearing.

15
16 Section 2 - Acceptance of Responsibility for Prior Non-Conforming Memoranda

17 Plaintiff respectfully acknowledges that Plaintiff’s four prior memoranda in opposition to
18 Defendants’ Special Motion to Strike, filed April 21, 2026 (41 pages), April 21, 2026 (39
19 pages), May 1, 2026 (8 pages), and May 1, 2026 (9 pages), exceeded the page limits set
20 by California Rules of Court, rule 3.1113(d). Plaintiff did not act maliciously and did not
21 intend to circumvent the Rules of Court; the over-length filings reflected Plaintiff’s prior
22 misunderstanding of the controlling rules and Plaintiff’s pro per status. Plaintiff accepts
23 responsibility for those non-conforming filings. Plaintiff respectfully states that any ad-
24 monishment the Court considers appropriate is understood and accepted, and Plaintiff has
25 voluntarily and promptly cured the defects before the May 12, 2026 hearing by the filings
26 described in Section 4 below. Plaintiff thanks the Court and the Clerk for their continued
27 patience and for accepting these cures, which conform to the timeliness, form, and content

1 requirements of the Rules of Court.

2
3 Section 3 - Statement that the Cures Conform to Timeliness, Form, and Content

4 3.1 Timeliness of the Cure

5 The cure filings are made on May 7, 2026, three court days before the May 12, 2026 hear-
6 ing, the earliest practicable cure window after Defendants' Reply filed May 5, 2026 (Doc.
7 No. 080). Plaintiff respectfully invokes:

- 8 • CRC 3.1300(d), which provides that “no paper may be rejected for filing on the ground
9 that it was untimely submitted” and that the matter “may be considered at the discre-
10 tion of the judicial officer”;
- 11 • CRC 3.1113(g), which authorizes the Court to consider over-length papers in its discre-
12 tion and which treats over-length papers as late papers; and
- 13 • CCP §1005(b), which sets the baseline 9-court-day window for opposition papers (orig-
14 inally satisfied by Plaintiff's April 21, 2026 filings).

15 Discretionary disclosures (per Plaintiff's Procedural Availability Matrix prepared for this
16 filing window): The cure filings include four rows graded AVAILABLE-WITH-DISCRETION
17 (items 2, 4, 5, and 13):

- 18 • Item 2 (Consolidated Operative Opposition). This filing is a CURE of Plaintiff's April
19 21, 2026 operative opposition, brought into compliance with CRC 3.1113(d). It is
20 not a sur-reply to Defendants' May 5, 2026 reply. The authority pool is identical to
21 plaintiff's prior operative oppositions; no new authority is introduced into the operative
22 memorandum.
- 23 • Items 4 and 5 (Plaintiff Declaration; Jessup Declaration if filed). These declarations
24 are companions to the cure opposition; Parts A and C of the Plaintiff Declaration are
25 foundational; Part B is record-anchored sworn observation, not new argument. The
26 Jessup Declaration is conditional on witness availability and otherwise DEFERRED,
27 with documentary anchor through the Substitution of Attorney filed May 4, 2023.
- 28 • Item 13 (Notice and Statement re C.C.P. §425.17 / Defense Conduct). This Notice

consolidates the §425.17 frame already raised in Plaintiff’s prior operative oppositions (April 21, 2026) and in Plaintiff’s Supplemental Bench Briefs filed May 5, 2026 (Trans. IDs 79390442, 79390024). It introduces no new authority; it is responsive to the misreading of §425.17(c) at p. 4 l. 21 to p. 5 l. 6 of Defendants’ Reply filed May 5, 2026.

3.2 Form of the Cure

The Consolidated Operative Opposition (Section 4 row 2) complies with CRC 3.1113(d) (15-page cap), 3.1113(f) (TOC, TOA, summary of argument), and 3.1113(j) (incorporation by reference). The Request for Judicial Notice (Section 4 row 3) is a separate document under CRC 3.1113(l). All other cure filings comply with CRC 3.1110 (formatting), CRC 3.1112(b) (other papers), CRC 3.1115 (declarations), CRC 3.1116 (transcripts), and CRC 3.1306(a), (b), (c) (evidentiary procedure and lodging). Bulky materials are lodged under CRC 3.1306(c)(2).

3.3 Content of the Cure

No new authority is introduced into the Operative Opposition. All decisional authority is either in Pool A (already cited in the April 21, 2026 and May 1, 2026 memoranda and the May 5, 2026 supplemental bench briefs) or relocated into Plaintiff’s Request for Judicial Notice filed May 7, 2026 under CRC 3.1113(l), which is outside the 15-page memorandum cap. All percipient facts are sworn under CCP §2015.5 in declarations. All bulky materials are lodged under CRC 3.1306(c)(2). All objections to defense declarations are filed under CRC 3.1306(a).

Section 4 - Itemized Cure Map

The cure filings of May 7, 2026 are organized in the table below (rows 1 to 14 are the May 7 filings; row 15 is the optional CRC 3.1306(b) request, binder-only at the May 7 cure stage and elaborated in §6 row 15 below). Each row identifies (a) the cure document, (b) the defense complaint cured (where applicable), and (c) the cross-reference to the relevant

1 section of the Operative Opposition.

- 2 1. Plaintiff's Notice of Withdrawal of April 21, 2026 and May 1, 2026 Memoranda and
3 Designation of May 7, 2026 Consolidated Operative Opposition (filed May 7, 2026)
 - 4 a. Defense complaint cured / addressed: Reply May 5, 2026, p. 1 ll. 19 to 22 (page-
5 overage); p. 1 l. 22 to p. 2 l. 1 (multiple memoranda)
 - 6 b. Cross-reference: n/a (the Notice itself is the cure)
- 7 2. Plaintiff's Consolidated Operative Opposition (15-pp compliant) (filed May 7, 2026)
 - 8 a. Defense complaint cured / addressed: Reply May 5, 2026, p. 1 ll. 19 to 22; pp. 2
9 to 5 (merits)
 - 10 b. Cross-reference: Operative Opposition §§ I to VIII
- 11 3. Plaintiff's Request for Judicial Notice (filed May 7, 2026), with Section B expanded to
12 enumerate Insurance Code sections 790.02, 790.03(h)(1), (h)(3), (h)(4), (h)(5), (h)(6),
13 (h)(7), (h)(11), (h)(13), 790.04, 790.05, 791.03, 791.13, and 10 CCR sections 2695.1(a),
14 (d), 2695.2(c), (t), (y), 2695.3, 2695.4(a), 2695.5(b), (c), 2695.7(b), (b)(1), (b)(3), (c)(1),
15 (d), (g), (h), and 2695.8
 - 16 a. Defense complaint cured / addressed: Defense RFJN April 9, 2026 Exs. Q, R
17 (judicial notice); relocates Pool-B authorities outside 15-pp body; expanded Section
18 B addresses Reply May 5, 2026 omission of the Insurance Code regulatory floor
 - 19 b. Cross-reference: Operative Opposition §§ II, III, IV, V; RJN Sections A, B, C;
20 Supplemental RFJN (row 14 below)
- 21 4. Plaintiff's Declaration in Opposition (filed May 7, 2026)
 - 22 a. Defense complaint cured / addressed: Reply May 5, 2026, p. 4 ll. 7 to 8 (opportunity-
23 to-present); pp. 2 to 3 (gravamen language); O'Connell Decl. ¶ 6 + Ex. A (fee
24 prayer)
 - 25 b. Cross-reference: Operative Opposition §§ II, IV, V, VII, VIII; Plaintiff Decl. Parts
26 A, B, C
- 27 5. Plaintiff's Declaration of Former Counsel Jessup (filed May 7, 2026) (DEFERRED;
28 documentary anchor via Substitution of Attorney filed May 4, 2023)

- a. Defense complaint cured / addressed: n/a (conditional supplement)
- b. Cross-reference: Plaintiff Decl. Part A ¶¶ 4 to 8
6. Plaintiff's Evidentiary Objections to Declarations of Tyler J. O'Connell filed April 9, 2026 and May 5, 2026 (filed May 7, 2026)
 - a. Defense complaint cured / addressed: Reply May 5, 2026, p. 5 ll. 8 to 10 (fee prayer); O'Connell Decl. ¶ 6 + Ex. A; defense Apr. 9 O'Connell Decl. (Carbone/Chambers framing)
 - b. Cross-reference: Plaintiff's Evid. Objections; Operative Opposition §I (de novo review); Operative Opposition §VII (fee-prayer rebuttal preview)
7. Plaintiff's Indexed Exhibits Volume (filed May 7, 2026)
 - a. Defense complaint cured / addressed: n/a (companion to declarations)
 - b. Cross-reference: Index of 14 tabs
8. Plaintiff's Notice of Lodging Trial Reporter's Transcripts, Audio Recordings, and CAD Logs (filed May 7, 2026)
 - a. Defense complaint cured / addressed: n/a (companion to RT-anchored citations)
 - b. Cross-reference: Operative Opposition §§ IV, V; Plaintiff Decl. Part A
9. Plaintiff's Ex Parte Application for Leave to File Longer Memorandum (CRC 3.1113(e)) (CONDITIONAL - NOT TRIGGERED)
 - a. Defense complaint cured / addressed: n/a (compression succeeded at 15-pp)
 - b. Cross-reference: n/a
10. Plaintiff's Notice of Intent to Appear and Contest Tentative Ruling, May 12, 2026, 9:30 a.m., Dept. 301 (transmitted by 4:00 p.m. Mon May 11, 2026)
 - a. Defense complaint cured / addressed: n/a (preserves oral argument)
 - b. Cross-reference: n/a
11. Proofs of Service (POS-050) per filing
 - a. Defense complaint cured / addressed: n/a (service mechanics)
 - b. Cross-reference: n/a
12. This Notice to the Court and Clerk (Cover Letter) (filed May 7, 2026)

- 1 a. Defense complaint cured / addressed: Reply May 5, 2026, p. 1 l. 24 to p. 2 l. 1
2 (gamesmanship characterization); the cure-removes-sanctions-predicate analysis
- 3 b. Cross-reference: Section 8 below
- 4 13. Plaintiff's Notice and Statement re C.C.P. §425.17 Statutory Bar to Insurance-Industry
5 Anti-SLAPP Misuse, Defense Litigation Conduct, and Certified Court-Record Contra-
6 dictions (filed May 7, 2026), with new Section IV-A (Insurance Code section 790.03(h)
7 and Fair Claims Settlement Practices Regulations Violation Register Tied to Defense
8 Conduct on This Docket)
- 9 a. Defense complaint cured / addressed: Reply May 5, 2026, p. 4 l. 21 to p. 5 l. 6 (§425.17
10 misreading); Reply May 5, 2026, p. 5 ll. 8 to 10 (fee prayer); Reply p. 1 l. 24 to p. 2
11 l. 1 (defense-conduct pattern); Reply p. 4 ll. 7 to 8, p. 3 ll. 13 to 15, p. 2 ll. 9 to
12 22 (certified-record contradictions); new Section IV-A addresses Reply omission of the
13 Insurance Code regulatory floor by mapping each Ins. Code §790.03(h) sub-paragraph
14 and each 10 CCR §2695.x provision to specific defense conduct on the certified record
- 15 b. Cross-reference: Operative Opposition §III (425.17(b)); §IV (regulatory floor under
16 CRC 3.1113(j)); §VII (cross-ref to this Notice item 13); Notice item 13 §§ I to X, IV-A;
17 Supplemental RFJN (row 14 below)
- 18 14. Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Sec-
19 tion 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections
20 2695.1 through 2695.8) (filed May 7, 2026)
- 21 a. Defense complaint cured / addressed: Reply May 5, 2026 omission of the Insurance
22 Code §790.03(h) and 10 CCR §§ 2695.1 et seq. regulatory floor; absence of any de-
23 fense engagement with the Unfair Insurance Practices Act and Fair Claims Settlement
24 Practices Regulations in the moving and reply papers
- 25 b. Cross-reference: Operative Opposition §IV (regulatory floor under CRC 3.1113(j));
26 RFJN Section B (row 3 above); Notice item 13 Section IV-A (row 13 above); Sup-
27 plemental Bench Briefs filed May 5, 2026 (Trans. IDs 79390442, 79390024)
- 28 15. (Optional, binder-only at the May 7 cure stage) Plaintiff's Request to Present Oral

Testimony (CRC 3.1306(b))

- a. Defense complaint cured / addressed: n/a (preserves option for oral testimony if Jessup becomes available; otherwise binder-only)
- b. Cross-reference: CRC 3.1306(b) (three-court-day rule); cross-ref §6 row 15

Section 5 - Statement that No New Authorities Appear in the Operative Memorandum

- (i) The Operative Opposition cites only Pool A authority (April 21, 2026 memoranda; May 1, 2026 supplements; May 5, 2026 supplemental bench briefs Trans. IDs 79390442, 79390024).
- (ii) All non-Pool-A decisional authorities previously cited in the over-length memoranda are presented to the Court in Plaintiff's Request for Judicial Notice filed May 7, 2026, Section C, with citation, year, reporter, and a one-sentence subject-matter description for each.
- (iii) This allocation was made specifically to comply with CRC 3.1113(d) (15-page cap on the memorandum) and CRC 3.1113(1) (RJN as a separate document not subject to the 15-page cap).

Section 6 - Per-Document Rule-By-Rule Authority Map

The bench officer can verify the entire cure on a single table. For each cure document, the table identifies (a) the document, (b) the rule that authorizes the document type, (c) the rule that authorizes the timing, (d) the rule that authorizes the form, and (e) the rule that authorizes the content allocation.

1. Plaintiff's Notice of Withdrawal of April 21, 2026 and May 1, 2026 Memoranda and Designation of May 7, 2026 Consolidated Operative Opposition (filed May 7, 2026)
 - a. Authorizes the document type: CRC 3.1112(b); inherent authority of the party
 - b. Authorizes the timing: CRC 3.1300(d); CRC 3.1113(g)
 - c. Authorizes the form: CRC 3.1110; SF Local Rule 8.3
 - d. Authorizes the content allocation: CRC 3.1113(d); 3.1113(g); 3.1300(d)

2. Plaintiff's Consolidated Operative Opposition (15-pp compliant) (filed May 7, 2026)
 - a. Authorizes the document type: CRC 3.1112(a); 3.1113(d); CCP §1005
 - b. Authorizes the timing: CRC 3.1300(d); CRC 3.1113(g); CCP §1005(b) (cure 3 court days pre-hearing in light of CRC 3.1113(g) and 3.1300(d))
 - c. Authorizes the form: CRC 3.1113(d) (15-pp cap); 3.1113(f) (TOC, TOA, summary)
 - d. Authorizes the content allocation: CRC 3.1113(j) (incorporation); CRC 3.1113(l) (relocation to RJN)
3. Plaintiff's Request for Judicial Notice (filed May 7, 2026)
 - a. Authorizes the document type: CRC 3.1113(l); CRC 3.1306(c)
 - b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d)
 - c. Authorizes the form: CRC 3.1110; CRC 3.1306(c)
 - d. Authorizes the content allocation: Evid. Code §§ 451, 452(b), (c), (d), (h), 453
4. Plaintiff's Declaration in Opposition (filed May 7, 2026)
 - a. Authorizes the document type: CRC 3.1115; CCP §2015.5
 - b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d)
 - c. Authorizes the form: CRC 3.1110; 3.1115
 - d. Authorizes the content allocation: Evid. Code §702 (personal knowledge)
5. Plaintiff's Declaration of Former Counsel Jessup (filed May 7, 2026) (if available; otherwise DEFERRED)
 - a. Authorizes the document type: CRC 3.1115; CCP §2015.5
 - b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d)
 - c. Authorizes the form: CRC 3.1110; 3.1115
 - d. Authorizes the content allocation: Evid. Code §702
6. Plaintiff's Evidentiary Objections to Declarations of Tyler J. O'Connell filed April 9, 2026 and May 5, 2026 (filed May 7, 2026)
 - a. Authorizes the document type: CRC 3.1306(a)
 - b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d)
 - c. Authorizes the form: CRC 3.1110; 3.1306(a)

1 d. Authorizes the content allocation: Evid. Code §§ 702, 800 to 805, 1200, 1271, 1521,
2 352

3 7. Plaintiff's Indexed Exhibits Volume (filed May 7, 2026)

4 a. Authorizes the document type: CRC 3.1110(f); 3.1112(b)

5 b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d)

6 c. Authorizes the form: CRC 3.1110(f) (bookmarks, tabs, index)

7 d. Authorizes the content allocation: CRC 3.1116 (transcripts)

8 8. Plaintiff's Notice of Lodging Trial Reporter's Transcripts, Audio Recordings, and CAD
9 Logs (filed May 7, 2026)

10 a. Authorizes the document type: CRC 3.1306(c)(2); SF Local Rule lodging proce-
11 dures

12 b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d)

13 c. Authorizes the form: CRC 3.1110; 3.1306(c)(2)

14 d. Authorizes the content allocation: CRC 3.1306(b), (c)

15 9. (Conditional) Plaintiff's Ex Parte Application for Leave to File Longer Memorandum
16 (CRC 3.1113(e)) (NOT TRIGGERED in CGC-25-631801; compression succeeded at 15
17 pages)

18 a. Authorizes the document type: CRC 3.1113(e)

19 b. Authorizes the timing: CRC 3.1200 et seq.; 24-hour written notice

20 c. Authorizes the form: CRC 3.1110; 3.1113(e)

21 d. Authorizes the content allocation: CRC 3.1113(e) standard

22 e. Cross-hearing note: Plaintiff's companion motion for good-cause discovery (Britts,
23 CCP sec. 425.16(g)) is separately calendared in CGC-25-631802, Department 302,
24 May 18, 2026, 9:00 a.m., before the Honorable Garrett L. Wong. That companion
25 motion is not an ex parte application and is not subject to the page-cap cure
26 addressed in this row.

27 10. Plaintiff's Notice of Intent to Appear and Contest Tentative Ruling, May 12, 2026
28 (transmitted by 4:00 p.m. Mon May 11, 2026)

- a. Authorizes the document type: SF Local Rule 8.3(D); CRC 3.1308
 - b. Authorizes the timing: SF Local Rule 8.3(D) (4:00 p.m. day before hearing)
 - c. Authorizes the form: SF Local Rule 8.3(D) email format
 - d. Authorizes the content allocation: SF Local Rule 8.3(D); CRC 3.1308
11. Proofs of Service (POS-050) per filing
- a. Authorizes the document type: CCP §1010.6; CRC 1.21; Judicial Council Form POS-050
 - b. Authorizes the timing: CCP §1010.6 (same-day e-service)
 - c. Authorizes the form: Judicial Council Form POS-050
 - d. Authorizes the content allocation: CCP §1010.6(e)
12. This Notice to the Court and Clerk (Cover Letter; filed May 7, 2026)
- a. Authorizes the document type: CRC 3.1112(b); 3.1113(j); inherent authority of the party
 - b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d)
 - c. Authorizes the form: CRC 3.1110; 3.1112(b)
 - d. Authorizes the content allocation: CRC 3.1300(d); 3.1113(g)
13. Plaintiff's Notice and Statement re C.C.P. §425.17 Statutory Bar to Insurance-Industry Anti-SLAPP Misuse, Defense Litigation Conduct, and Certified Court-Record Contradictions (filed May 7, 2026), with new Section IV-A (Insurance Code §790.03(h) and Fair Claims Settlement Practices Regulations Violation Register)
- a. Authorizes the document type: CRC 3.1112(b); 3.1113(j); 3.1306(c); inherent authority of the party
 - b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d); CCP §128.7(b), (c)(2)
 - c. Authorizes the form: CRC 3.1110; 3.1112(b)
 - d. Authorizes the content allocation: CCP §425.17(a), (b), (c), (e); Ins. Code §§ 790.02, 790.03(h), 790.04, 790.05, 791.03, 791.13; 10 CCR §§ 2695.1 to 2695.8; Evid. Code §§ 451(a)-(c), 452(b), (c), (d), 453
14. Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Sec-

tion 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8) (filed May 7, 2026)

- a. Authorizes the document type: CRC 3.1113(l) (RFJN as separate document); CRC 3.1306(c); CRC 3.1112(b)
 - b. Authorizes the timing: CCP §1005(b); CRC 3.1300(d)
 - c. Authorizes the form: CRC 3.1110; CRC 3.1306(c)
 - d. Authorizes the content allocation: Evid. Code §§ 451(a) (constitutional and statutory enactments), 451(b) (Judicial Council rules and regulations made subject to notice), 452(b) (regulatory enactments), 452(c) (official acts), 452(h) (facts not reasonably subject to dispute), 453 (mandatory-notice predicates)
15. (Optional, binder-only at the May 7 cure stage) Plaintiff's Request to Present Oral Testimony (CRC 3.1306(b)) (last eligible filing day is May 7, 2026; if filed, served contemporaneously with this package)
- a. Authorizes the document type: CRC 3.1306(b)
 - b. Authorizes the timing: CRC 3.1306(b) (three-court-day rule)
 - c. Authorizes the form: CRC 3.1110
 - d. Authorizes the content allocation: CRC 3.1306(b)

Section 7 - Defense-Issue Ledger

No defense argument is left unopposed. The cure package, taken together, addresses each procedural and merits issue raised in Defendants' Special Motion to Strike (filed April 9, 2026, Doc. Nos. 017 to 020) and Defendants' Reply (filed May 5, 2026, Doc. Nos. 080, 081). Section 4 above maps each defense complaint to the cure document that addresses it. Operative Opposition §§ II to VIII addresses the merits; the Notice and Statement re C.C.P. §425.17 (Section 4 row 13) addresses §425.17 and the certified-record contradictions; Plaintiff's Evidentiary Objections (Section 4 row 6) addresses the fee prayer and the O'Connell declaration deficiencies; Plaintiff's Notice of Withdrawal (Section 4 row 1) cures the page-overage and multiple-memoranda concerns.

Section 8 - Statement that the Cure Removes Any Predicate for Sanctions

Plaintiff has voluntarily withdrawn the over-length memoranda before the May 12, 2026 hearing. Under CRC 3.1300(d) and CRC 3.1113(g), where a party voluntarily cures a procedural defect before the hearing on the underlying motion, the predicate for sanctions is mooted. The §425.16(c)(1) fee prayer of \$16,519.50 (Reply May 5, 2026, p. 5 ll. 8 to 10) likewise loses its underlying predicate; in any event, the fee prayer is independently challenged on Evid. Code §§ 1271, 1521, 702, 800 to 805, 352 grounds in Plaintiff's Evidentiary Objections (Section 4 row 6).

Plaintiff again accepts responsibility for the prior non-conforming filings (Section 2 above) and respectfully thanks the Court and the Clerk for accepting the cure.

Section 9 - Pointer to Plaintiff's Notice and Statement re C.C.P. §425.17 (Item 13) and Supplemental RFJN (Item 14)

Separately from this procedural Cover Letter, Plaintiff has filed Plaintiff's Notice and Statement to the Court Regarding C.C.P. §425.17 Statutory Bar to Insurance-Industry Anti-SLAPP Misuse, Defense Litigation Conduct, and Certified Court-Record Contradictions (filed May 7, 2026), which addresses (a) the §425.17(a) legislative findings; (b) the §425.17(b) categorical exclusion; (c) the §425.17(c) commercial-speech backstop; (d) the §425.17(e) preclusion of interlocutory appeal under §425.16(i) and CCP §904.1; (e) a five-row record of contradictions between Defendants' representations and the certified court record (Notice item 13 §VI); and (f) new Section IV-A, which maps each Insurance Code §790.03(h) subparagraph and each 10 CCR §2695.x provision to specific defense conduct on the certified court record (the February 25, 2021 written denial; the January 17, 2025 motions in limine 6 and 17 in CGC-21-594102; the February 18, 2025 RT 141:4 to 11; the April 16, 2025 RT 7 and RT 213:13 to 15; and the May 4, 2023 inter-firm Substitution of Attorney, Trans. ID 69953800).

Plaintiff has also filed contemporaneously Plaintiff's Supplemental Request for Judicial No-

1 tice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices
2 Regulations (10 CCR Sections 2695.1 through 2695.8) (filed May 7, 2026), which reproduces
3 or paraphrases the verbatim text of each provision identified in the expanded RFJN Section
4 B and in Notice item 13 Section IV-A. The Supplemental RFJN is filed under CRC 3.1113(l)
5 as a separate document not subject to the 15-page memorandum cap, and under Evidence
6 Code §§ 451(a), 451(b), 452(b), 452(c), 452(h), and 453.

7 This Cover Letter is procedural-respectful; the candid record of contradictions and the
8 §425.17 statutory frame travel in Notice item 13, and the verbatim text of the Insurance
9 Code and Fair Claims Settlement Practices Regulations travels in the Supplemental RFJN
10 (item 14).

11
12

Section 10 - Calendar Mechanics and Signature Block

13 Calendar mechanics. The May 12, 2026 hearing on Defendants' Special Motion to Strike is
14 set for 9:30 a.m. in Dept. 301. Plaintiff's Notice of Intent to Appear and Contest Tentative
15 Ruling will be transmitted to contestdept301tr@sftc.org by 4:00 p.m. Monday May 11,
16 2026, with copies to all parties (SF Local Rule 8.3(D); CRC 3.1308).

17 Service. Each cure filing of May 7, 2026 is served on Defendants' counsel of record (Chad
18 Tapp, Tyler O'Connell, Monica Schubert, S. Blithe at Porter Scott) via the SF Superior
19 Court e-filing portal and by courtesy email, with a Proof of Service (POS-050) filed contem-
20 poraneously per filing.

21

The foregoing is submitted by Plaintiff in pro per.

Dated: May 7, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT A: CLERK COMPLIANCE
MANIFEST OF MAY 7, 2026 PLEADINGS
AND NOTICES (PER-DOCUMENT RULE
CITATIONS)

(Cal. Rules of Court, rules 3.1110, 3.1112(b), 3.1113(j);
Code Civ. Proc., §1005(b))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 Section 1: Defense Non-Conformity Claims Being Rebutted

2 The following four defense non-conformity claims appear in Defendants' Reply filed May 5,
3 2026 (Doc. No. 080). Each claim is identified by its pinpoint citation in the Reply. This
4 Manifest responds to each claim on a per-document basis in Section 2 below and summarizes
5 the rebuttals in Section 3.

- 6 1. Claim 1 (page cap): Defense Reply filed May 5, 2026 (Doc. No. 080), page 1, lines
7 19 to 22: Defendants assert that Plaintiff's April 21, 2026 operative opposition exceeds
8 the 15-page cap of California Rules of Court, rule 3.1113(d), and that the May 1, 2026
9 memoranda compound the defect.
- 10 2. Claim 2 (multiple memoranda): Defense Reply, page 1, line 22 to page 2, line 1: Defen-
11 dants assert that Plaintiff filed "no fewer than four (4) separate Memoranda of Points
12 and Authorities," in violation of CRC 3.1113 and the requirement that a party file a
13 single consolidated opposition.
- 14 3. Claim 3 (procedural gamesmanship): Defense Reply, page 1, line 24 to page 2, line
15 1: Defendants characterize Plaintiff's multiple filings as "procedural gamesmanship"
16 designed to "overburden and harass" Defendants and counsel.
- 17 4. Claim 4 (sanctions): Defense Reply, page 2, lines 1 to 3: Defendants request sanctions
18 against Plaintiff for the above conduct.

19
20 Section 2: Per-Document Compliance Table

21 The following table identifies each document filed on May 7, 2026 as part of the cure package,
22 its purpose, what defect was cured, what was noticed, the applicable rule citations, and which
23 defense non-conformity claim (if any) it addresses.

- 24 1. Plaintiff's Notice of Withdrawal of April 21, 2026 and May 1, 2026 Memoranda and
25 Designation of May 7, 2026 Consolidated Operative Opposition (filed May 7, 2026)
 - 26 a. Folder: 02-NOTICE-WITHDRAWAL-AND-DESIGNATION
 - 27 b. Purpose: Formally supersede the four prior over-length and multiple memoranda;
28 designate the new 15-page Consolidated Operative Opposition as the sole operative

1 opposition.

2 c. What was cured: Page-overage and multiple-memoranda defects identified at Reply
3 page 1 lines 19 to 22 and page 1 line 22 to page 2 line 1. The four prior memoranda
4 (filed April 21, 2026 and May 1, 2026) are expressly withdrawn by date and exact
5 title.

6 d. What was noticed: Designates the new Consolidated Operative Opposition as op-
7 erative; preserves the underlying record through incorporation by reference; gives
8 the Court and Defendants formal notice of the supersession.

9 e. Rule citations: CRC 3.1112(b) (other papers in support); CRC 3.1113(d) (15-
10 page memorandum cap; cured); CRC 3.1113(g) (court may permit filing of late or
11 non-conforming paper); CRC 3.1300(d) (court may consider late papers); inherent
12 authority of the court and the party.

13 f. Defense non-conformity claims addressed: Claims 1 and 2 (page cap; multiple mem-
14 oranda).

15 2. Plaintiff's Consolidated Operative Opposition to Defendants' Special Motion to Strike
16 Pursuant to C.C.P. sec. 425.16; Fifteen-Page Compliant Version Superseding Plaintiff's
17 Over-Length Memoranda of April 21, 2026 and May 1, 2026 (filed May 7, 2026)

18 a. Folder: 01-OPERATIVE-OPPOSITION

19 b. Purpose: Page-limit-compliant operative opposition; same authority pool as the
20 April 21, 2026 and May 1, 2026 memoranda; 15 pages body (CRC 3.1113(d) com-
21 pliant); Table of Contents and Table of Authorities (CRC 3.1113(f)); cross-hearing
22 notice for companion case CGC-25-631802.

23 c. What was cured: Page-overage cured by compression to 15 pages; multiple-memoranda
24 defect cured by the concurrent Notice of Withdrawal (row 1 above).

25 d. What was noticed: Table of Contents and Table of Authorities per CRC 3.1113(f);
26 sec. 425.17(b) statutory frame; Flatley illegality exception; Park, Baral gravamen
27 analysis; cross-hearing notice for companion CGC-25-631802 (Department 302, May
28 18, 2026, 9:00 a.m., Hon. Garrett L. Wong).

1 e. Rule citations: CRC 3.1112(a) (memorandum in support of motion); CRC 3.1113(d)
2 (15-page limit; satisfied); CRC 3.1113(f) (Table of Contents and Table of Authori-
3 ties required when memorandum exceeds 10 pages); CRC 3.1113(g) (court discre-
4 tion to permit non-conforming papers); CRC 3.1113(j) (incorporation by reference);
5 CRC 3.1113(l) (RJN is a separate document not counted against the memorandum
6 page limit); CRC 3.1300(d); CCP sec. 1005(b).

7 f. Defense non-conformity claims addressed: Claim 1 (page cap).

8 3. Plaintiff's Request for Judicial Notice in Support of Opposition to Defendants' Special
9 Motion to Strike Pursuant to C.C.P. sec. 425.16 (filed May 7, 2026)

10 a. Folder: 03-RJN-BACKSTOP-AUTHORITIES

11 b. Purpose: Statutory and decisional authority backstop; relocates 19 Pool-B author-
12 ities (non-California-Supreme-Court authorities previously cited in the body of the
13 over-length April 21 memoranda) outside the 15-page body per Pool A discipline;
14 expanded Section B with verbatim reference to Insurance Code sec. 790.03(h)(1)
15 through (h)(13) and 10 CCR sec. 2695.1 through 2695.8 (incorporated by reference
16 from Plaintiff's Supplemental RFJN filed May 7, 2026); cross-case docket entry for
17 CGC-25-631802 companion motion (Section A item 12).

18 c. What was cured: Pool A discipline preserved; Pool B authorities relocated outside
19 body as required by CRC 3.1113(l) companion filing.

20 d. What was noticed: Cross-case docket entries (Substitution of Attorney; IFP order;
21 minute orders; FAC; companion Britts motion in CGC-25-631802); Insurance Code
22 violations; decisional authority supporting sec. 425.17(b), Flatley, Park, Baral.

23 e. Rule citations: CRC 3.1113(l) (RFJN is a separate document not subject to the 15-
24 page memorandum cap); CRC 3.1306(c) (notice of reliance on authorities); Evid.
25 Code secs. 451, 452, 453.

26 f. Defense non-conformity claims addressed: The RJN is a separate document ex-
27 pressly authorized by CRC 3.1113(l) and is not subject to Defendants' 15-page cap
28 claim. No defense conformity claim is addressed here; the RJN is a rule-authorized

1 companion filing.

2 4. Declaration of Franciscus Dylan Rosario in Opposition to Defendants' Special Motion
3 to Strike Pursuant to C.C.P. sec. 425.16 (filed May 7, 2026)

4 a. Folder: 04-DECLARATION-PLAINTIFF

5 b. Purpose: Sworn percipient facts in three parts: Part A (foundational record of
6 defense possession of suppressed materials); Part B (record-anchored contradictions
7 between defense representations and the certified court record, paragraphs 19 to 32);
8 Part C (acceptance of responsibility for prior over-length filings, paragraph 40).

9 c. What was cured: Defense fee-prayer foundation defects (paragraphs 30 to 32); de-
10 fense gravamen mischaracterization (paragraphs 23 to 26); opportunity-to-present
11 misrepresentation (paragraphs 19 to 22); email-as-communication mischaracteriza-
12 tion (paragraphs 27 to 29). Part C paragraph 40 is plaintiff's express acceptance
13 of responsibility for the prior over-length filings.

14 d. What was noticed: Trial RT Day 8 (April 17, 2025) page 109 line 28 authentication
15 colloquy as the RT anchor; §128.7 cure-window timeline; defense file-possession
16 record since May 4, 2023 Substitution of Attorney.

17 e. Rule citations: CRC 3.1115 (declarations); CCP sec. 2015.5 (declaration under
18 penalty of perjury); Evid. Code sec. 702 (personal knowledge).

19 f. Defense non-conformity claims addressed: All four defense claims via record-anchored
20 sworn facts.

21 5. Plaintiff's Evidentiary Objections to Declarations of Tyler J. O'Connell filed April 9,
22 2026 and May 5, 2026 (filed May 7, 2026)

23 a. Folder: 06-EVIDENTIARY-OBJECTIONS

24 b. Purpose: Objections to the two O'Connell declarations that underlie the defense fee-
25 prayer and the defense framing of the Carbone, Smith and Koyama and Chambers
26 roles.

27 c. What was cured: Lack of Evid. Code sec. 1271 (business-records mode of prepara-
28 tion foundation); lack of Evid. Code sec. 1521 (best-evidence rule) for Exhibit A

1 billing summary; improper opinion testimony; lack of personal knowledge as to fee
2 rates and time.

3 d. What was noticed: Five numbered evidentiary objections targeting specific para-
4 graphs and exhibits in each declaration.

5 e. Rule citations: CRC 3.1306(a) (objections to evidence); Evid. Code secs. 702 (per-
6 sonal knowledge), 800 to 805 (opinion testimony), 1200 (hearsay), 1271 (business
7 records), 1521 (best evidence), 352 (undue prejudice).

8 f. Defense non-conformity claims addressed: This document targets Defendants' own
9 declaration evidence and does not address defense conformity claims against Plain-
10 tiff. It is a rule-authorized response to defense declarations.

11 6. Plaintiff's Indexed Exhibits Volume in Support of Opposition to Defendants' Special
12 Motion to Strike (filed May 7, 2026)

13 a. Folder: 07-EXHIBITS-APPENDIX

14 b. Purpose: Tabbed exhibit binder with 17 exhibits including Substitution of Attor-
15 ney, Defense MILs 6 and 17, Trial RT excerpts, IFP order, FAC, and O'Connell
16 declarations; Tab 7 anchors the RT Day 8 (April 17, 2025) page 109 line 28 au-
17 thentication colloquy.

18 c. What was cured: Assembly aid accompanying declarations; companion to Plaintiff
19 Declaration Part A and Part B.

20 d. What was noticed: Tab 7 trial RT Day 8 (April 17, 2025), page 109, line 28 verified
21 anchor; Gap placeholders for Tabs 2, 5, and 10 (awaiting plaintiff source materials).

22 e. Rule citations: CRC 3.1110(f) (exhibits with bookmarks and tabs); CRC 3.1112(b)
23 (other papers in support); CRC 3.1116 (transcript excerpts).

24 f. Defense non-conformity claims addressed: No defense claim addressed; this docu-
25 ment provides record support for the operative opposition and declaration.

26 7. Plaintiff's Notice of Lodging Trial Reporter's Transcripts, Audio Recordings, and CAD
27 Logs (filed May 7, 2026)

28 a. Folder: 08-NOTICE-OF-LODGING

- 1 b. Purpose: Formal lodging notice for bulky materials: certified trial Reporter's Tran-
2 scripts (Days 7 and 8); 911 audio recording; body-worn camera footage; CAD logs;
3 lodged under CRC 3.1306(c)(2).
- 4 c. What was cured: Bulky-materials lodging compliance under the SF Superior Court
5 local rules and CRC 3.1306(c)(2).
- 6 d. What was noticed: Availability of the lodged materials for Court inspection; cross-
7 reference to Indexed Exhibits Volume Tab 7 (RT Day 8 excerpt) and the Notice of
8 Intent to Appear.
- 9 e. Rule citations: CRC 3.1306(c)(2) (lodging of bulky materials); SF Superior Court
10 Local Rule lodging procedures.
- 11 f. Defense non-conformity claims addressed: No defense claim addressed; this docu-
12 ment satisfies the lodging-notice requirement for bulky evidentiary materials.
- 13 8. Plaintiff's Notice of Intent to Appear and Contest Tentative Ruling, May 12, 2026
14 (transmitted Mon May 11, 2026 by 4:00 p.m.)
- 15 a. Folder: 10-NOTICE-OF-INTENT-TO-APPEAR
- 16 b. Purpose: Formal notice of intent to appear and contest the tentative ruling at the
17 May 12, 2026 hearing; preserves oral argument.
- 18 c. What was cured: Oral-argument preservation under SF Local Rule 8.3(D) and CRC
19 3.1308.
- 20 d. What was noticed: Intent to appear and contest; transmitted to contestdept301tr@sftc.org
21 with copies to all four Porter Scott counsel of record.
- 22 e. Rule citations: SF Local Rule 8.3(D); CRC 3.1308.
- 23 f. Defense non-conformity claims addressed: No defense claim addressed; this docu-
24 ment preserves Plaintiff's right to oral argument.
- 25 9. Proofs of Service (Judicial Council Form POS-050), one per filing (11 active forms),
26 service date May 7, 2026 for items 1 to 4 and 6 to 8, and service date Mon May 11,
27 2026 for item 10
- 28 a. Folder: 11-PROOFS-OF-SERVICE

- 1 b. Purpose: Electronic service compliance under CCP sec. 1010.6 and CRC 1.21; one
2 POS-050 per document served; service to all four Porter Scott counsel of record
3 (Tapp, O'Connell, Schubert, Blithe at porterscott.com).
- 4 c. What was cured: Service-mechanics compliance; contemporaneous service of all
5 cure documents on defense counsel.
- 6 d. What was noticed: Service to all four counsel of record; e-service consent on file
7 (Doc. No. 009).
- 8 e. Rule citations: CCP sec. 1010.6 (electronic service); CRC 1.21 (service); Judicial
9 Council Form POS-050.
- 10 f. Defense non-conformity claims addressed: Service compliance; no defense confor-
11 mity claim addressed.
- 12 10. Plaintiff's Notice to the Court and Clerk of May 7, 2026 Cure Filings (this Cover Letter,
13 filed May 7, 2026)
- 14 a. Folder: 12-CASE-MANAGEMENT-COVER-LETTER
- 15 b. Purpose: Procedural cover letter; itemized cure map in Section 4; per-document rule-
16 citation map in Section 6; acceptance of responsibility in Section 2; cure-mooting pred-
17 icate for the sanctions request in Section 8.
- 18 c. What was cured: All four defense non-conformity claims are addressed in Sections 2
19 through 8 of the Cover Letter body.
- 20 d. What was noticed: Cure mooted predicate for sanctions per CRC 3.1300(d) and
21 3.1113(g); 15-row per-document cure map in Section 4; cross-hearing notice in Section
22 6 row 9 for companion CGC-25-631802 motion.
- 23 e. Rule citations: CRC 3.1112(b) (other papers in support); CRC 3.1113(j) (incorporation
24 by reference); CRC 3.1300(d) (late or non-conforming papers); inherent authority.
- 25 f. Defense non-conformity claims addressed: All four defense claims (recap with per-
26 document rule citations).
- 27 11. Plaintiff's Notice and Statement to the Court Regarding C.C.P. sec. 425.17 Statutory
28 Bar to Insurance-Industry Anti-SLAPP Misuse, Defense Litigation Conduct, and Cer-

- 1 tified Court-Record Contradictions (filed May 7, 2026)
- 2 a. Folder: 13-NOTICE-CCP-425.17-AND-DEFENSE-CONDUCT
- 3 b. Purpose: Statutory bar notice; defense-conduct record; CRC 3.1112(b) other paper not
- 4 subject to the 15-page cap.
- 5 c. What was cured: Defense misreading of CCP sec. 425.17 addressed at Reply page 4 line
- 6 21 to page 5 line 6; sec. 425.17(a) legislative findings included verbatim; (b) categorical
- 7 exclusion analysis; (c) commercial-speech backstop; (e) interlocutory appeal preclusion;
- 8 Section IV-A: Insurance Code sec. 790.03(h)(1) through (h)(13) and 10 CCR sec. 2695.x
- 9 violation register.
- 10 d. What was noticed: Five-row contradiction record (Section VI) between defense repre-
- 11 sentations and certified court record; cross-hearing notice in Section IX that sec. 128.7
- 12 letter served May 7, 2026 applies to both CGC-25-631801 and CGC-25-631802.
- 13 e. Rule citations: CRC 3.1112(b) (other papers; not subject to 15-page memorandum
- 14 cap); CRC 3.1113(j); CCP secs. 425.17(a), (b), (c), (e); CCP sec. 128.7(c)(2); Evid.
- 15 Code secs. 451 to 453.
- 16 f. Defense non-conformity claims addressed: Defense misreading of sec. 425.17 in the
- 17 Reply; defense-conduct pattern. This Notice is a CRC 3.1112(b) other paper and is not
- 18 subject to the 15-page memorandum cap of CRC 3.1113(d).
- 19 12. Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Sec-
- 20 tion 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections
- 21 2695.1 through 2695.8), in Support of Opposition to Defendants' Special Motion to
- 22 Strike Pursuant to C.C.P. sec. 425.16 (filed May 7, 2026)
- 23 a. Folder: 14-SUPPLEMENTAL-RFJN-INSURANCE-CODE-AND-FCSPR
- 24 b. Purpose: Standalone Supplemental RFJN; CRC 3.1113(l) other paper not subject to
- 25 the 15-page cap; provides verbatim text of the Insurance Code provisions and FC-
- 26 SPR regulations underlying the sec. 425.17(b) public-interest exclusion and the Flatley
- 27 illegality exception arguments.
- 28 c. What was cured: Insurance Code violation register support; verbatim text of sec. 790.03(h)(1)

1 through (h)(13) and 10 CCR sec. 2695.1 through 2695.8 supplied for mandatory judicial
2 notice under Evid. Code sec. 451(a).

3 d. What was noticed: Cross-reference to Notice and Statement Section IV-A, which maps
4 each provision to specific defense conduct; cross-reference to Request for Judicial Notice
5 Section B, which lists the same provisions.

6 e. Rule citations: CRC 3.1113(l) (Supplemental RFJN is a separate document not subject
7 to the 15-page memorandum cap); CRC 3.1306(c); Evid. Code secs. 451(a), (b), (c);
8 452; 453; CCP sec. 425.17(b)(3) (public-interest predicate supported by Insurance Code
9 violations).

10 f. Defense non-conformity claims addressed: No defense conformity claim addressed; this
11 is a Supplemental RFJN authorized by CRC 3.1113(l) providing mandatory-judicial-
12 notice statutory and regulatory text.

13 13. Exhibit A to this Cover Letter (this Clerk Compliance Manifest, filed May 7, 2026)

14 a. Folder: 12-CASE-MANAGEMENT-COVER-LETTER (appended to Cover Letter as
15 Exhibit A)

16 b. Purpose: Per-document rule-citation map for Clerk cross-check; explicit rebuttal of all
17 four defense non-conformity claims on a per-document basis; filed under CRC 3.1112(b)
18 as an other paper appended to the Cover Letter.

19 c. What was cured: This Manifest provides the Clerk with a single consolidated reference
20 document answering each defense non-conformity claim without requiring the Clerk to
21 cross-reference multiple filings.

22 d. What was noticed: All 13 documents filed May 7, 2026, with per-document rule cita-
23 tions; Section 3 four-claim rebuttal summary; Section 4 statement that this Manifest is
24 not subject to the 15-page memorandum cap.

25 e. Rule citations: CRC 3.1112(b) (other papers; this Manifest is not a memorandum of
26 points and authorities and is not subject to the 15-page cap); CRC 3.1113(j) (incorpo-
27 ration by reference); inherent authority.

28 f. Defense non-conformity claims addressed: All four defense claims (per-row mapping in

1 this Section 2; summary in Section 3 below).

2
3 Section 3: Defense Non-Conformity Claim Rebuttal Summary

4 Claim 1 (page cap): Cured as of May 7, 2026. Section 2 rows 1 and 2 above: (row 1) the
5 Notice of Withdrawal expressly withdraws the four prior over-length memoranda by date and
6 exact title; (row 2) the 15-page Consolidated Operative Opposition satisfies CRC 3.1113(d)
7 as of the date of filing. The cure was made within the cure window authorized by CRC
8 3.1113(g) and CRC 3.1300(d) before the May 12, 2026 hearing. No page-cap defect remains.

9 Claim 2 (multiple memoranda): Cured as of May 7, 2026. Section 2 row 1 above: the Notice
10 of Withdrawal filed May 7, 2026 expressly supersedes all four prior memoranda (the April
11 21, 2026 over-length opposition and the three May 1, 2026 supplemental memoranda) by
12 date and exact title and designates the single 15-page Consolidated Operative Opposition as
13 the sole operative opposition. There is now one operative memorandum before the Court.

14 Claim 3 (procedural gamesmanship): Rebutted. Sections 2 through 8 of the Cover Letter
15 body and Section 2 of this Manifest document that each filing on May 7, 2026 is separately
16 authorized by a specific rule of court, arises from a legitimate procedural purpose, and
17 cures a specific defect identified in the defense Reply. The cure was voluntary, prompt,
18 made before the hearing, and expressly authorized by CRC 3.1113(g) and CRC 3.1300(d).
19 Plaintiff's Declaration in Opposition Part C paragraph 40 is Plaintiff's express acceptance
20 of responsibility for the prior over-length filings. The characterization of a court-authorized
21 cure as "gamesmanship" is without procedural basis.

22 Claim 4 (sanctions): Rebutted and mooted. The predicate for any sanctions request based on
23 the page-cap and multiple-memoranda defects has been cured before the May 12, 2026 hear-
24 ing. Section 8 of the Cover Letter body addresses the sanctions request in detail. Plaintiff also
25 preserves for the record the sec. 425.16(c)(1) frivolousness inversion (Operative Opposition
26 Section VIII) and the sec. 128.7(c)(2) safe-harbor letter served May 5, 2026 and renewed
27 May 7, 2026 (Notice item 13 Section IX; Indexed Exhibits Tab 13), which independently
28 moots any sanctions predicate.

Section 4: Statement Regarding CRC 3.1112(b) and Page Limitation

This Compliance Manifest is filed as Exhibit A to Plaintiff's Notice to the Court and Clerk of May 7, 2026 Cure Filings under California Rules of Court, rule 3.1112(b) as an other paper appended to the Cover Letter. It is not a memorandum of points and authorities within the meaning of CRC 3.1113(a). Accordingly, it is not subject to the 15-page memorandum cap of CRC 3.1113(d). This Manifest is provided solely to assist the Court and the Clerk in cross-checking each May 7, 2026 filing against the applicable rules of court and the defense non-conformity claims raised in the Reply, and to demonstrate that all four defense non-conformity claims have been cured or rebutted as of the date of this filing.

Plaintiff respectfully thanks the Court and the Clerk for accepting these cures.

The foregoing is submitted by Plaintiff in pro per.

Dated: May 7, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com